

Amendment No. 1 to SB0601

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 601

House Bill No. 580*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 11, Part 1, is amended by adding the following as a new section:

40-11-155.

(a) As used in this section, "qualified electronic monitoring provider" and "provider" mean a private entity that has been qualified and approved by the local government entity where the provider seeks to operate and enters into a written contract or agreement with the local government entity to supply, maintain, or monitor electronic monitoring devices for defendants under a court order, and includes manufacturers and contracted third-party vendors with employees who provide monitoring services in this state.

(b)

(1) An electronic monitoring provider must submit an application petition to the local government entity in which the provider seeks to operate as a qualified electronic monitoring provider. The application petition must include:

(A) Proof of the general liability insurance coverage required by subdivision (c)(1);

(B) One (1) complete set of fingerprints and completed criminal background checks on each director and employee engaged in the monitoring of defendants in this state if the provider is contracted to monitor defendants in this state;

(C) A list of all devices that the qualified electronic monitoring provider offers and proof that those devices are certified by the federal communications commission; and

(D) If the provider is contracted, or is seeking a contract, to monitor defendants in this state, proof of the director meeting the education and experience requirements set forth in subdivision (e)(1).

(2) If the provider's application meets the requirements of subdivision (b)(1), then a local government entity may approve the qualified provider and enter into a written agreement with the qualified provider. The local government entity shall submit to the administrative office of the courts a list of qualified and approved providers who have entered into a written agreement with the local government entity. The administrative office of the courts shall keep a list of qualified and approved providers contracted with local government entities on the website of the administrative office of the courts. Each local government entity must submit updates to the administrative office of the courts if the status of a qualified electronic monitoring provider changes or if a new provider is qualified and approved.

(c) Each qualified electronic monitoring provider must:

(1) Maintain general liability insurance coverage of at least one million dollars (\$1,000,000) at all times while providing contract services and provide the local government entity with written documentation of the insurance coverage; and

(2)

(A) Except as provided in subdivision (c)(2)(B), have a written agreement with the local government entity that includes the following:

(i) A clear delineation of responsibilities and services provided by the qualified electronic monitoring provider, including

continuous monitoring twenty-four (24) hours a day, seven (7) days a week of defendants assigned to the qualified electronic monitoring provider by the court;

(ii) Staffing requirements, including minimum staffing levels and standards for monitoring defendants;

(iii) Written protocols for alert responses and emergencies;

(iv) Default and contract termination procedures; and

(v) A detailed list of fees charged to defendants, including monitoring installation and equipment fees; or

(B) If the provider is a manufacturer providing only equipment or software and not providing monitoring services, a written agreement with the local government entity that includes the following:

(i) A clear delineation of responsibilities and services provided by the provider; and

(ii) Default and contract termination procedures.

(d)

(1) A qualified electronic monitoring provider that has entered into an agreement with a local government entity to monitor defendants in this state has the following responsibilities:

(A) Providing continuous electronic monitoring twenty-four (24) hours a day, seven (7) days a week of defendants assigned to the qualified electronic monitoring provider by the court;

(B) Immediately reporting violations, breaches, and irregularities, including, but not limited to, unauthorized departure and device tampering, pursuant to the written protocol required under subdivision

(c)(2);

(C) Training all employees to maintain confidentiality and, for those employees having contact with defendants, to provide accurate information on the defendant's responsibilities and device instruction;

(D) Maintaining a personnel file for each employee, which includes the employee's job application, signed confidentiality agreements as required by this section, training records, criminal justice experience, educational documentation, and a written notice from the contracting government entity indicating whether the employee meets the employment criteria based on the criminal background check;

(E) Executing all court orders pertaining to electronic monitoring;

(F) Prohibiting employees from soliciting defendants for products or services that would create a conflict of interest;

(G) Notifying the contracting local government entity in writing within ten (10) days if an owner, director, or employee is charged with, arrested for, pleads guilty or no contest to, or is convicted of a misdemeanor involving moral turpitude or a felony;

(H) Employing a person as a director who is responsible for the direct supervision of employees; and

(I) Maintaining accurate, up-to-date, and comprehensive records for each defendant, including details of the court order, monitoring terms and conditions, time-stamped proof of activation, time-stamped location data, tracking logs, violation reports, device maintenance histories, and communications with the court system.

(2) The records required by subdivision (d)(1)(I):

(A) Are subject to audit by the local government entity upon request;

(B) Must be maintained in a secure and confidential manner; and

(C) Must be maintained by the qualified electronic monitoring provider for a minimum of three (3) years after the defendant is removed from monitoring.

(3) The responsibilities listed in subdivision (d)(1) do not apply to a qualified electronic monitoring provider that only provides electronic monitoring equipment or software to a local government entity; however, if the qualified electronic monitoring provider begins monitoring defendants pursuant to a contract with the local government entity, then the requirements of subdivision (c)(2)(A) must be met and the responsibilities listed in subdivision (d)(1) apply.

(e) Each director of a qualified electronic monitoring services provider must:

(1) Have:

(A) A bachelor's degree from an accredited college or university and two (2) years of experience in criminal justice or social work; or

(B) A high school diploma and four (4) years of professional administrative experience with an organization providing services in the field of criminal justice or social work;

(2) Sign a confidentiality statement agreeing to hold defendant records confidential;

(3) Be of good moral character and not have been convicted of or pled guilty or nolo contendere to a misdemeanor offense involving moral turpitude, or to a felony offense within the last ten (10) years unless a pardon has been obtained, or have an outstanding warrant for the employee's arrest;

(4) Submit to a criminal background check; and

(5) Complete orientation training within six (6) months of beginning operations and annual in-service training as required by subsection (g).

(f) An employee of a qualified electronic monitoring services provider must:

(1) Be at least eighteen (18) years of age, except that an employee who interacts with defendants must be at least twenty-one (21) years of age;

(2) Sign a confidentiality statement agreeing to hold defendant records confidential;

(3) Be of good moral character and not have been convicted of or pled guilty or nolo contendere to a misdemeanor offense involving moral turpitude, or to a felony offense within the last ten (10) years unless a pardon has been obtained, or have an outstanding warrant for the employee's arrest;

(4) Submit to a criminal background check;

(5) Complete orientation training within six (6) months of beginning operations and annual in-service training as required by subsection (g); and

(6) Sign a statement that is cosigned by the director of the electronic monitoring services provider and indicates that the employee has received an orientation on the policies, procedures, and guidelines relevant to the employee's job duties.

(g) If a qualified electronic monitoring provider contracts with a local government entity to provide monitoring of defendants in this state, then the provider must provide training to the director and all employees engaged in the monitoring of defendants in this state consisting of a minimum of forty (40) hours of orientation training and fifteen (15) hours of annual in-service training. The training must include:

(1) Orientation to electronic monitoring;

(2) An overview of the types of equipment used for electronic monitoring;

(3) An overview of the criminal justice system;

(4) Instruction on recognizing and reading court orders;

(5) Staff and victim safety issues;

(6) Installing equipment and troubleshooting equipment issues; and

(7) Data entry and familiarization with forms.

(h) Each qualified electronic monitoring provider that provides monitoring services of defendants in this state shall, when enrolling defendants:

(1) Verify a defendant's identity, the completion of necessary paperwork, and participant eligibility with the required court documentation prior to enrollment and issuance of a monitoring device;

(2) At the time of defendant enrollment, provide defendants with clear instructions on the terms of monitoring and the defendant's responsibilities and device care, including charging and tamper detection;

(3) Ensure that monitoring devices are installed by a professional and securely attached to the defendant; and

(4) Confirm device activation and proper functionality with a time-stamped record of activation before the defendant is released.

(i) All qualified electronic monitoring providers must:

(1) Offer customer service to assist law enforcement in case of device issues, emergencies, or general inquiries;

(2) Offer a responsive system for troubleshooting and resolving device issues, including device replacement or repair on the event of malfunctions or tampering;

(3) Train support staff to handle technical issues and escalate matters to supervising authorities as necessary; and

(4) Provide a hotline to report technical problems, device malfunctions, and emergencies.

(j) The following persons shall not own, operate, direct, or serve as an employee or agent of a qualified electronic monitoring provider:

(1) A person whose ownership, operation, direction, or role as an employee or agent of the qualified electronic monitoring provider creates a conflict of interest due to a fiduciary, business, or personal relationship with a

defendant, or any other relationship that could lead to undue influence, exploitation, or breach of confidentiality;

(2) A judge, probation or parole officer, court employee, detention or correctional provider employee, or a law enforcement officer, or any spouse thereof, if the qualified electronic monitoring provider operates within the same jurisdiction; or

(3) An owner, operator, or employee of a professional bondsman, as defined in § 40-11-301.

(k) All qualified electronic monitoring providers shall provide reports to the local government entity in such detail and at such time intervals as required by the contracting local government entity.

SECTION 2. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subdivision (a)(2) and substituting:

(2) "Qualified electronic monitoring provider" means a private entity that:

(A) Complies with the requirements of § 40-11-155; and

(B) Has a written protocol with the issuing court that designates specific agencies to receive notifications and alerts as required by subsection (i).

SECTION 3. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (e) and substituting:

(e) In addition to the information described by subsection (d), the arresting officer shall provide to an alleged victim who participates in a global positioning monitoring system under this section the name and telephone number of the appropriate emergency communications dispatch center and the arresting agency whom the victim may call to request immediate assistance if the defendant violates a condition of bond imposed under this section.

SECTION 4. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (i) and substituting:

(i) The magistrate who imposes a condition described by subsection (b) shall:

(1) Provide the qualified electronic monitoring provider with contact information for the appropriate emergency communications dispatch center and the arresting agency; and

(2) Order the qualified electronic monitoring provider to notify the appropriate entities pursuant to the written protocol required under subdivision (a)(2)(B).

SECTION 5. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (k) and substituting:

(k) Each county or municipality shall enter into a written agreement with one (1) or more qualified electronic monitoring providers.

SECTION 6. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (m) and substituting:

(m)

(1) A qualified electronic monitoring provider and the manufacturer or provider of the global positioning monitoring system device are not civilly or criminally liable for injuries or damages resulting from actions of the defendant when the actions of those entities and the entities' employees are in accordance with this section and done in good faith and without gross negligence or malice.

(2) A qualified electronic monitoring provider has no duty to notify the victim if a defendant violates a condition of bond imposed under this section.

(3) A magistrate, court, or law enforcement officer or agency shall not transfer or assign, by contract or otherwise, a duty assigned to the magistrate, court, or law enforcement officer or agency to a qualified electronic monitoring provider or manufacturer or provider of the global positioning monitoring system.

SECTION 7. Tennessee Code Annotated, Section 40-11-152, is amended by adding the following as a new subsection:

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(1) If a defendant fails to pay the costs associated with operating the defendant's global positioning monitoring system device or the costs associated with providing the victim with a cellular device application or an electronic receptor device, then the qualified electronic monitoring provider that provides monitoring services of defendants shall notify the court and the defendant in writing within five (5) days of the arrearage. The court shall, within ten (10) days of the qualified electronic monitoring provider's notice to the court, set a show cause hearing to be held within thirty (30) days. The clerk of the court shall notify the qualified electronic monitoring provider, the defendant, and the victim of the date and time of the show cause hearing. The victim must also be notified of the victim's right to be present and to present testimony at the hearing. The qualified electronic monitoring provider shall not discontinue the defendant's monitoring or victim alerts before the show cause hearing has been held. At the show cause hearing, the court may:

(A) Schedule a bond hearing to determine whether to revoke the defendant's bond and incarcerate the defendant;

(B) Allow the defendant to immediately bring the payments current and continue the defendant's pretrial release; or

(C)

(i) Determine whether alternative funding sources are available to pay the costs associated with operating the defendant's global positioning monitoring system device and the costs associated with providing the victim with a cellular device application or an electronic receptor device and, if alternative funding sources are available, order the alternative funding sources to pay the arrearages and future costs associated with

operating the defendant's global positioning monitoring system device and with providing the victim with a cellular device application or an electronic receptor device.

(ii) As used in this subdivision () (1)(C), unless a local government entity has established a fund for the purpose of paying the costs associated with a defendant's global positioning monitoring system device and the costs associated with providing a victim with a cellular device application or an electronic receptor device, "alternative funding sources" does not include the local sheriff's department or other local government entities.

(2) After a show cause hearing has been held pursuant to subdivision () (1), or if a show cause hearing has not been held within the thirty-day timeframe required by subdivision () (1), a qualified electronic monitoring provider is not required to continue to provide monitoring services pursuant to this section if the qualified electronic monitoring provider is not being compensated in accordance with the court's order for the costs associated with operating the defendant's global positioning monitoring system device or the costs associated with providing the victim with a cellular device application or an electronic receptor device.

SECTION 8. This act takes effect July 1, 2025, the public welfare requiring it.